

HOUSE No. 30

So much of the recommendations of the Massachusetts Teachers' Retirement System (House, No. 26) as relates to clarifying creditable service buyback for publicly funded non-public schools

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act clarifying creditable service buyback for publicly funded non-public schools.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Subdivision (1) of section 4 of chapter 32 of the General Laws, as
2 appearing in the 2022 Official Edition, is hereby amended by striking out paragraph (p) and
3 inserting in place thereof the following paragraph:-

4 (p) For the purposes of this paragraph, the following words shall, unless the context
5 clearly requires otherwise, have the following meanings:-

6 “Non-public school”, an institution operated by a private entity in the commonwealth that
7 offers a special education program as approved by the Department of Elementary and Secondary
8 Education; provided, that service in a non-public school shall not include activities in a residence
9 or afterschool program.

10 “School age child”, as defined in section 1 of chapter 71B.

11 “Special education”, as defined in section 1 of chapter 71B.

Any member of a contributory retirement system who is engaged in a teacher position and holds a license issued by the department of elementary and secondary education or is exempted from the requirement of licensure and who was previously employed as a teacher as defined in section 1 in a special education program for school-aged children in a non-public school, if the tuition of all pupils in said non-public school was financed in part or in full by the commonwealth, may, before the date any retirement allowance becomes effective for the member, establish such service as creditable service by depositing into the annuity savings fund of the relevant system in 1 sum, or in installments, upon such terms and conditions as the board may prescribe, an amount equal to that which would have been withheld as regular deductions from regular compensation for such previous period, or most recent portion thereof, as the member may elect, had such service been rendered in a public school of the commonwealth, plus buyback interest to the date of such deposit for such previous period, or most recent portion thereof, as the member may elect. Payment shall not be made and no credit shall be allowed for such non-public school service in excess of the total service rendered in a public school of the commonwealth to which the member would be entitled to receive credit if the member remained in service to age 65, with the maximum credit for service in non-public schools not to exceed 10 years; provided, that no credit shall be allowed and no payment shall be accepted for any service for which the member shall be entitled to receive a retirement allowance, annuity or pension from any other source. Upon completion of such payments, the member shall receive the same credit for such period of the member's previous non-public school service or portion thereof elected, as would have been allowed had such service been rendered by the member in a public school of the commonwealth. The member shall furnish the board with such information as it shall require to determine the amount to be paid and the credit to be allowed under this

paragraph. At the time a retirement allowance becomes due to a member or to a beneficiary under option (d) of subdivision (2) of section 12, if the service rendered in public schools of the commonwealth on the date either the retirement allowance becomes effective, or on the date the member attained age 65, whichever occurs first, is less than the service in said non-public schools for which the member has paid, credit shall be allowed only for the most recent service rendered in said non-public schools equal to such service rendered in the public schools of the commonwealth and the amount paid for such additional service shall be refunded with accumulated interest, refund to be made only when the retirement allowance becomes due to the member or to the beneficiary under option (d) of subdivision (2) of section 12, and if it is found that payment has been accepted for any service for which the member is entitled to a retirement allowance, annuity or pension from any other source, the amount paid for such service with accumulated interest shall also be refunded with no retirement credit allowed.